

2. The Court finds that Defendants are in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendants in the principal amount of \$489.94, plus prejudgment interest of \$1,995.38, attorneys' fees of \$941.80 and costs of \$845.00, for a total judgment of \$4,272.12.
4. The Court shall issue the order after hearing.
5. Plaintiff to submit a proposed form of money judgment against Defendants. Any prior dismissal entered herein against the Defendants is hereby set aside in connection with entry of such judgment.

13. 9:00 AM CASE NUMBER: MSL21-01906
CASE NAME: JPMORGAN CHASE VS CYNTHIA WARRENDER
***HEARING ON MOTION IN RE:**
FILED BY: WARRENDER, CYNTHIA L
TENTATIVE RULING:

Defendant and judgment debtor Cynthia L Warrender ("Defendant") filed a Motion to Vacate Default and Default Judgment on October 6, 2025 (the "Motion to Vacate Judgment"). The Motion to Vacate Judgment was set for hearing on December 16, 2025. A Proof of Service regarding the Motion to Vacate Judgment was filed November 4, 2025. No opposition was filed.

Background

Plaintiff and Judgment creditor JPMorgan Chase Bank, N.A. ("Plaintiff") filed a Complaint on September 3, 2021. A default was entered against Defendant on January 3, 2022 (the "Default"). Thereafter, a default money judgment was entered on September 1, 2022 against Defendant in the total amount of \$11,005.26 (the "Default Judgment").

Analysis

Defendant contends that service was not properly made upon Defendant.

1. Validity of Service

The subject proof of service recites that service was done on Defendant by personal service on October 27, 2021:

3. a. Party served (specify name of party as shown on documents served):

CYNTHIA L WARRENDER

b. ☐ Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under item 5b whom substituted service was made) (specify name and relationship to the party named in item 3a):

4. Address where the party was served:

1076 DEER OAK PL, CONCORD, CA 94521-4542

5. I served the party (check proper box)

a. ☒ **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on (date): **10/27/2021** at (time): **6:27 PM**
CYNTHIA L WARRENDER, I delivered the documents to CYNTHIA L WARRENDER with identity confirmed by subject stating their name. The individual tried to refuse service by closing the door and did not state reason for refusal (documents left, seen by subject). The individual appeared to be a blonde-haired white female contact 45-55 years of age, 5'8"-5'10" tall and weighing 160-180 lbs.

See Proof of Service of Summons filed November 3, 2021 ("11/3/21 POSS"), ¶¶3-5.

The service was done by a registered process server. See 11/3/21 POSS at ¶7. This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Defendant's supporting declarations proffer evidence to rebut this presumption. The declarations assert that the person served was actually Defendant's sister, Catherine Ellison. See Declaration of Cynthia Warrender ("Warrender Decl."), ¶3 *et seq.*; Declaration of Catherine Ellison ("Ellison Decl."), ¶3 *et seq.* A detailed recitation of the circumstances are recounted by Ms. Ellison, including that it was her who was handed the envelope by the process server on the purported date of service. See Ellison Decl., ¶¶3-4.

Defendant's evidence rebuts the presumption of valid service arising from the 11/3/21 POSS and demonstrates a lack of valid service. No opposition has been filed, including any counter declaration by the process server.

Accordingly, the Court concludes that substitute service was not properly effected on Defendant by virtue of the purported service on October 27, 2021.

The Court has authority to vacate the Default Judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) ("The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order."); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

There is no evidence that Defendant failed to act diligently to seek to set aside the Default Judgment. Defendant states that she "just became aware of this judgment." Warrender Decl., ¶3.

2. Liens Extinguished

In addition, an Abstract of Judgment was issued by the Court on July 25, 2023. Because the

Default Judgment is being vacated, any execution or judgment lien(s) are extinguished as a matter of law. An execution or judgment lien is entirely dependent on the judgment. “A lien ... cannot exist apart from the judgment upon which it is based. Thus, in the ordinary course of events when the judgment is vacated by court order the lien will also cease to exist, because the effect of a vacating order is to eliminate the judgment. [Citation.] Once vacated, the status of the parties that existed prior to the judgment is restored and the situation then prevailing is the same as though the order or judgment had never been made. [Citation.]” *Bulmash v. Davis* (1979) 24 Cal.3d 691, 697.

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Judgment is GRANTED.
2. The Default and Default Judgment are hereby SET ASIDE and VACATED.
3. Any and all writ(s) of execution and/or abstract(s) of judgment are hereby VACATED, RECALLED and QUASHED.
4. If any abstract(s) of judgment were recorded, Plaintiff shall, within thirty (30) days of notice of entry of this order, take all reasonable steps to prepare and record with the County Recorder a release of the abstract(s) of judgment and any judgment lien thereunder, pursuant to Code of Civil Procedure section 697.400 and all applicable law. Thereafter, Plaintiff shall file and serve a Notice of Release of Lien.
5. **Next CMC Date.** This matter is set for a Case Management Conference (CMC) on **February 18, 2026, 8:30 am**, in Department 34 of the Court (the “Next CMC Date”). Plaintiff shall be prepared to discuss the status of service at the Next CMC Date.

14. 9:00 AM CASE NUMBER: N25-0377
CASE NAME: KATHERINE STAUDT VS. UNEMPLOYMENT INSURANCE APPEALS BOARD
HEARING ON DEMURRER TO:
FILED BY:
TENTATIVE RULING:

Respondents California Unemployment Insurance Appeals Board (“CUIAB”) and Employment Development Department (EDD)* filed, on October 28, 2025, a Demurrer to Petitioner Katherine Staudt’s (“Petitioner”) Petition for Administrative Mandate regarding a decision of the CUIAB. The Demurrer was set for hearing on December 16, 2025. The hearing date and briefing schedule were set pursuant to a prior scheduling order issued by the Court. See Joint Case Scheduling Order entered October 6, 2025.

An Opposition was filed by Petitioner on November 21, 2025.

*The Demurrer is brought on behalf of the EDD, as well as the CUIAB. The EDD ostensibly appears as a respondent, although the EDD is not named in the caption of the operative